

TENTATIVE RULINGS FOR MAY 4, 2026
Department R17
BEFORE THE HONORABLE JANET M. FRANGIE
(sitting on assignment)

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court's website after 3:00 p.m. the day before the hearing at <https://www.sb-court.org/divisions/civil/civil-tentative-rulings>.

You may appear in person or by remote appearance at the hearing. (See www.sb-court.org/general-information/remote-access) If you do not have Internet access you may obtain the tentative ruling by calling (909) 285-3753 or telephoning the department at 909-285-3732] If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 p.m. the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling and be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

1.

CASE NUMBER	CASE NAME	TYPE OF HEARING
CIVRS2500226	<i>Ricardo Gomez v. LINC-Pepperwood Housing Investors, L.P. et al</i>	Plaintiff's Motion to Compel compliance with Deposition Subpoena

Tentative Ruling:

Motion:

The unopposed motion by Plaintiff Ricardo Gomez to compel compliance with the deposition subpoena served on non-party San Bernardino Sheriff's Department/Rancho Cucamonga Police Department is granted, for good cause shown. The Court finds that the burden of demonstrating any privilege under *California Evidence Code* Section 1040 is on the department. The proposed deponent was served with the motion and did not file any opposition. Therefore, the Court further finds that disclosure is not prohibited by *California Evidence Code* Section 1040. The San Bernardino Sheriff's Department/Rancho Cucamonga Police Department is ordered to comply on or before May 30, 2026.

Moving party is directed to prepare an Order consistent with the Court's ruling and give notice of ruling.